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March 2, 2026

SENATE BILL NO. 1558

By: Reinhardt

An Act relating to child care; amending 10 O.S. 2021, Section 402, which relates to definitions; modifying certain definitions; updating statutory language; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10 O.S. 2021, Section 402, is amended to read as follows:

Section 402. As used in the Oklahoma Child Care Facilities
Licensing Act:

1. "Adult" means an individual eighteen (18) years of age or older, except for an individual who is in the legal custody of the Office of Juvenile Affairs and jurisdiction has been extended beyond eighteen (18) years of age pursuant to the provisions of the Oklahoma Juvenile Code;

2. "Child" or "minor" means any person who has not attained the age of eighteen (18) years, or an individual who is in the legal custody of the Office of Juvenile Affairs and jurisdiction has been extended beyond eighteen (18) years of age pursuant to the provisions of the Oklahoma Juvenile Code;

1 3. "Child care center" means a program that operates thirty
2 (30) or more hours per week;

3 4. "Child care facility" means any public or private child care
4 residential facility, child-placing agency, foster family home,
5 child care center, part-day program, out-of-school time program, day
6 camp, drop-in program, program for sick children, family child care
7 home, or large family child care home providing either full-time or
8 part-time care for children away from their own homes;

9 5. "Child-placing agency" means an agency that arranges for or
10 places a child in a foster family home, adoptive home, or
11 independent living program;

12 6. "Foster family home" means the private residence of a family
13 which provides foster care services to a child, and includes a
14 specialized foster home, a therapeutic foster family home, or a
15 kinship care home;

16 7. "Foster parent eligibility assessment" includes a criminal
17 background investigation, including, but not limited to, a national
18 criminal history records search based upon the submission of
19 fingerprints, a home assessment, and any other assessment required
20 by the Department of Human Services, the Office of Juvenile Affairs,
21 or any child-placing agency pursuant to the provisions of Section 1-
22 7-106 of Title 10A of the Oklahoma Statutes. A foster parent
23 eligibility assessment shall be similar to the procedures used by
24

1 the Department of Public Safety for determining suitability of an
2 individual for employment as a highway patrol officer;

3 8. "Department" means the Department of Human Services;

4 9. "Division" means the section within the Department that is
5 assigned responsibilities pursuant to the provisions of the Oklahoma
6 Child Care Facilities Licensing Act;

7 10. "Family child care home" means a family home which provides
8 care and supervision for seven (7) or fewer children for part of the
9 twenty-four-hour day. The term ~~"family family child care home"~~ home
10 shall not include informal arrangements which parents make
11 independently with neighbors, friends, and others, or with
12 caretakers in the child's own home;

13 11. "Full-time care" means continuous care given to a child
14 beyond a minimum period of twenty-four (24) hours;

15 12. "Large family child care home" means a residential family
16 home which provides care and supervision for eight to twelve
17 children for part of the twenty-four-hour day;

18 13. "Part-day child care program" means a program that provides
19 care and supervision for children and that operates for more than
20 fifteen (15) and up to thirty (30) hours per week;

21 14. "Program" means the business entity that provides care,
22 supervision, and learning opportunities for children;

23 15. "Rap back" means a notification from the Oklahoma State
24 Bureau of Investigation to the Department of subsequent criminal

1 activity of individuals whose criminal background checks have been
2 completed pursuant to the requirements of the Oklahoma Child Care
3 Facilities Licensing Act;

4 16. "Residential child care facility" means a twenty-four-hour
5 residential facility where children live together with or are
6 supervised by adults who are not their parents or relatives;

7 17. "Responsible entity" means an individual who is authorized
8 to obligate the business; and

9 18. "Specialized service professional" means an individual from
10 an academic discipline or field of expertise who provides
11 individualized services to a child, such as behavioral or physical
12 therapists.

13 SECTION 2. It being immediately necessary for the preservation
14 of the public peace, health or safety, an emergency is hereby
15 declared to exist, by reason whereof this act shall take effect and
16 be in full force from and after its passage and approval.

17 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
18 March 2, 2026 - DO PASS
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